CHAPTER 61 National Commission for Minorities

Establishment

In 1978, the Government of India *vide* an executive resolution[1], set up a Minorities Commission to safeguard the interests of the minorities. The resolution explained the reasons for the establishment of the Minorities Commission in the following way:

Despite the safeguards provided in the Constitution and the laws in force, there persists among the Minorities a feeling of inequality and discrimination. In order to preserve secular traditions and to promote National Integration, the Government of India attaches the highest importance to the enforcement of the safeguards provided for the Minorities and is of firm view that effective institutional arrangements are urgently required for the enforcement and implementation of all the safeguards provided for the Minorities in the Constitution, in the Central and State Laws and in the Government policies and administrative schemes enunciated from time to time'.

Later, it was felt that the Minorities Commission be given statutory status so that it may infuse confidence among the minorities about the working and the effectiveness of the Commission. It would then also carry more weight with the State Governments/Union Territory Administrations and the Ministries/Departments and the other organisations of the Central Government.

With the enactment of the National Commission for Minorities Act, 1992[2], the Minorities Commission became a statutory body and was renamed the National Commission for Minorities. The first statutory Commission was constituted in 1993.

The Commission is an autonomous body. It works under the administrative control of the Ministry of Minority Affairs[3], Government of India.

The Act does not define the term 'minority', but enables the Central Government to notify 'minorities' for the purposes of the Act. Accordingly, the Centre in 1993 notified five religious communities, *viz*. Muslims, Christians, Sikhs, Buddhists and Zoroastrians (Parsis) as minority communities. In 2014, the Jain community was added to this list.[4]

Composition

The Commission is a multi-member body consisting of a Chairperson, a Vice-Chairperson and five members.[5] They are nominated by the Central Government from amongst persons of eminence, ability and integrity. However, five members including the Chairperson should be from amongst the minority communities.

The salaries, allowances and other service conditions of the Chairman and members are also prescribed by the Central Government (Ministry of Minority Affairs). Notably, members include the Vice-Chairperson.[6]

The chairperson and members hold office for a period of three years. However, they can relinquish their office at any time by addressing their resignation to the Central Government.

Further, the Central Government can also remove the Chairperson or a member from the office (before the expiry of the term) under any of the following circumstances: